

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

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DARVELL KELLY,

Plaintiff,

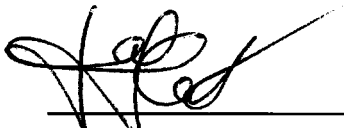
-against-

SUMMONSPlaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, Det. WILLIAM CONCANNON,
P.O. NICHOLAS KOUROUNIS, Sgt. LAURA BARBATO
and OFFICER[S] JOHN AND JAMES DOE, names
presently unknowable by Plaintiff and meant to
designate additional offending officers,The basis of venue is:
CPLR 504 (3)Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

March 15, 2019


By: **JONATHAN L. GLEIT, ESQ.**
*Attorney for Plaintiff*888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007Det. William Concannon, Shield 4518, 33 Detective Squad, 2207 Amsterdam Ave., NY NY 10032
P.O. Nicholas Kourounis, Shield 28949 & Sgt. Laura Barbato, Shield 270, both of the 46th Precinct
2120 Ryer Avenue, Bronx NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARVELL KELLY,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. WILLIAM CONCANNON,
P.O. NICHOLAS KOUROUNIS, Sgt. LAURA BARBATO,
and OFFICER[S] JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate additional
offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF DARVELL KELLY

1. At the time of the commencement of this action, plaintiff DARVELL KELLY was
and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about APRIL 22, 2017, Det. WILLIAM CONCANNON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about APRIL 22, 2017, at approximately 4 P.M., and throughout the hereinafter mentioned prosecution, Det. WILLIAM CONCANNON was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about APRIL 22, 2017, P.O. NICHOLAS KOUROUNIS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about APRIL 22, 2017, at approximately 4 P.M., and throughout the hereinafter mentioned prosecution, P.O. NICHOLAS KOUROUNIS was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about APRIL 22, 2017, P.O. Sgt. LAURA BARBATO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on and about APRIL 22, 2017, at approximately 4 P.M., and throughout the hereinafter mentioned prosecution, P.O. Sgt. LAURA BARBATO was working and

acting within the scope of her employment as a Police Officer, and under the color of law.

11. That on and about APRIL 22, 2017, OFFICER[S] JOHN AND/OR JAMES DOE , whose names are presently unknowable to Plaintiff but necessarily known by the defendants, and are meant to designate other officers involved in the arrest and prosecution of the Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about APRIL 22, 2017 at approximately 4 P.M., and throughout the hereinafter mentioned prosecution, OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about APRIL 22, 2017 at approximately 4 P.M., at or near the front of 2005 Grand Avenue, Bronx, New York, the plaintiff DARVELL KELLY was improperly stopped, questioned, searched, arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to stop, question, search, arrest or confine DARVELL KELLY.

14. That the defendants, their agents, servants and/or employees stopped, questioned, searched, arrested and confined the plaintiff without any basis in law or fact

and without reasonable, probable or just cause or justification or without other privilege.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants Det. WILLIAM CONCANNON, P.O. NICHOLAS KOUROUNIS, Sgt. LAURA BARBATO and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

17. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX016815 in the Criminal Court of the City of New York, County of Bronx, and case number 01470-2017 in the Supreme Court of the State of New York, County of Bronx, regarding plaintiff's arrest of APRIL 22, 2017 were dismissed and the prosecution was terminated in plaintiff's favor.

19. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of DARVELL KELLY.

20. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately four hundred and ninety five days.

21. That the defendants, their agents, servants and/or employees unlawfully stopped, questioned, arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact and without being otherwise privileged, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas and/or to to subjugate certain populations in ill-fated and unlawful attempts at minimizing other alleged criminal activities , without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

23. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause, and conducting stops and searches in public and while in custody when there is no reasonable basis to conduct such searches and seizures are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances, and as detailed below.

24. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

25. Additionally in the case of Floyd, et al. v. City of New York, et al., brought as a class action for persons similarly situated, in the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath, along with other evidence including statistical analysis, that the NEW YORK

CITY POLICE DEPARTMENT routinely arrests primarily minority populations without a legal reason to do so, and are required or expected to do so, for amongst other nefarious reasons, to satisfy arrest quotas.

26. Said arrest quotas, euphemistically known under such terms as 'productivity goals', and said wide-spread practice and procedure of stopping primarily minority males in areas populated by primarily persons of racial minorities without legal justification, known as "Stop, Question & Frisk" was thereafter determined by said Court to be created, condoned and implemented in a manner inconsistent and violative of the United States Constitution.

27. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

28. Additionally, defendants as named herein and their supervisors and commanders, have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under false pretense, and falsely swearing that they observed innocent persons acting in 'furtive' or suspicious manners and other pre-

textual excuses, thereby falsely justifying the pre-textual stop, and thereafter often threatening certain persons to divulge information they may not be in possession of or under no duty to divulge, or threatening said persons to become confidential informants, and upon failing to persuade said persons, falsely alleging and prosecuting said innocent persons for being in possession of illicit items that they were, in fact, not in possession of.

29. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as possession of things that said persons did not, in fact possess, is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ORLANDO GONZALEZ on April 8, 2011, LUIS RIVERA on July 27, 2014, GEOFFREY ROBINSON on July 7, 2015, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments

30. Furthermore patterns of wrongful strip searches, such as conducted upon plaintiff herein after his wrongful arrest, conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has

occurred to such other individuals at the 46th Precinct, such as, for instance, KAISON SHAW on February 20, 2009; SHARON GUILLEBEAU on August 18, 2009 and again on September 23, 3009; DAVID PALUZZI on or about April 25, 2010; JEFFREY JACKSON on or about November 12, 2010; WILLIE REEVES on December 15, 2010 and February 18, 2011; KAMAMA COLEMAN on April 6, 2011; JOSE SOSA on May 19, 2011; YAMRICK PARKER on February 5, 2011; CARLOS ACOSTA on or about November 29, 2012; MILTON CHAVIS on MAY 5, 2012; URIAH BROWN on July 19, 2012; DAIQUAN POW on October 3, 2012, OBERT RIVERA on May 2, 2012, SHAKEEM ENANG on August 17, 2012 and October 14, 2012, RONEL MANZUETTA on June 9, 2013 and June 15, 2014, HAROLD FIELDS on April 16, 2014, VINCENT NASIR on April 21, 2014, RONEL MANZUETTA on JUNE 9, 2013 and FREISIS SANTANA on October 13, 2014 and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continues unabated.

31. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
32. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.
33. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
34. That as a result of the foregoing, the plaintiff DARVELL KELLY was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF DARVELL KELLY

35. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 34 as though more fully set forth herein.

36. That on or about November 14, 2018, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

37. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

38. On February 21, 2019 the plaintiff did appear and give testimony at a General Municipal Law §50h hearing demanded and scheduled by the CITY OF NEW YORK.

39. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

40. That defendants, their agents, servants and /or employees initiated a prosecution of plaintiff and continued to deny and threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

41. That the defendants, their agents, servants and /or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

42. That the defendants Det. WILLIAM CONCANNON, P.O. NICHOLAS KOUROUNIS, Sgt. LAURA BARBATO and /or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and /or falsely and /or misleadingly testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

43. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX016815 in the Criminal Court of the City of New York, County of Bronx, and case number 01470-2017 in the Supreme Court of the State of New York, County of Bronx, regarding plaintiff's arrest of APRIL 22, 2017 were dismissed by the Honorable Albert Lorenzo, a Judge of said Court, on August 20, 2018 and the prosecution was terminated in plaintiff's favor.

44. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of DARVELL KELLY.

45. As a result of the malicious prosecution, plaintiff was deprived of his liberty for a period of approximately two hundred and eight days and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately four hundred and ninety five days.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the Plaintiff DARVELL KELLY was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DARVELL KELLY

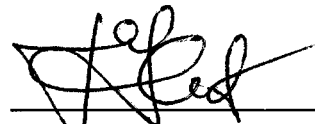
48. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

50. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests and prosecution of individuals.
51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
52. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff DARVELL KELLY was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,
Second and Third Causes of Action inclusive of punitive damages, and attorneys fees
as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts,
together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
March 15, 2019



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
DARVELL KELLY

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept. , New York, New York 10007

Det. William Concannon, Shield 4518, 33 Detective Squad, 2207 Amsterdam Ave., NY NY 10032

P.O. Nicholas Kourounis, Shield 28949 & Sgt. Laura Barbato, Shield 270
both of the 46th Precinct
2120 Ryer Avenue, Bronx NY 10457

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

DARVELL KELLY

I have read the annexed

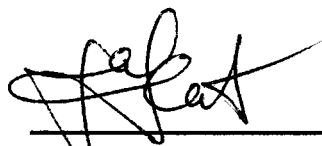
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

March 15, 2019



JONATHAN L. GLEIT, ESQ.